EDGAR MPOZORI
versus
EVAH SHONGAHENDE

HIGH COURT OF ZIMBABWE
**PHILLIPS J**
HARARE; 27 January 2026, 26, February 2026, 18,27 March 2026, 13 April 2026, 10 June 2026

***Court Application***

Applicant in person
Respondent in person

PHILLIPS J: The applicant has approached this court seeking an order for reasonable access of his three minor children in terms of section 6 of the **Guardianship of Minors Act [*Chapter 5:08*]**. The applicant is the father of the children who resides in Bulawayo. The respondent, who is the mother of the children is opposed to the application.

**Relief Sought**

1. The application for access be and is hereby granted.
2. The Respondent is hereby ordered to give the Applicant access to communicate on telephone to the minor children namely, April Chenai Mpozori (born 14 April 2015), Ashely Edison Mpozori (born on 31 August 2016) and Alya Maitaishe Mpozori (born on 14 August 2021) on every weekends.
3. The Respondent be and is hereby ordered to give Applicant access to the minor children namely, April Chenai Mpozori (born 14 April 2015), Ashley Edson Mpozori (born on 31 August 2016) and Alya Maitaishe Mpozori (born on 14 August 2021) for two weeks on every holidays.
4. The respondent be and is hereby ordered to pay costs.

**Factual Background**

The applicant and the respondent were married under an unregistered customary union in 2014. In 2023, the parties separated and have since been living apart. The marriage was blessed with three minor children namely ACM (born 14 April 2015), AEM (born on 31 August 2016) and AMM (born on 14 August 2021). Upon separation, the respondent retained custody of the minor children.

The applicant alleges that since January 2024, the respondent has been denying the applicant access to his children and that the respondent makes it difficult for him whenever he wants to see the children, giving one excuse after the other. The applicant also averred that the respondent has even made it difficult for him to communicate with his children over the phone, and that the last time he spoke to his children was sometime in April 2024. The applicant informed the court that as the biological father of the children he ought to enjoy his access rights and bond with his children.

In response, the respondent denied the allegation that she has been denying the applicant access to his children. The respondent averred that the applicant only visited the children a few times that included on 18 October 2023, 20 December 2023 and on 4 January 2024, then he stopped coming to see them. The respondent indicated to the court that there is also a call record for all the times the applicant has called to speak to his children, which shows that the children openly spoke to their father without anyone interfering. However, the respondent acknowledges that she sold her phone and some of her few belongings in order to raise funds to cover for medical bills for their daughter (AM) which the applicant had refused to pay. The respondent also told the court that the applicant once bought two second hand phones for the two children in January 2024, which did not last long, thereafter the applicant was informed that the phones needed repair and nothing was done to repair or replaces the phones.

The applicant claims reasonable access to the minor child as the non- custodian parent. On the other hand, the defendant concedes that the plaintiff is entitled to access rights over his children but she wishes the court to restrict such access to supervised access only.

In order to get a full perspective, before making a decision, this court ordered for a social welfare officer to be appointed and for an investigation into the best interests of the minor children to be conducted. The social welfare officer's report was made available to the court and the parties and the recommendation made was that the children may not be ready to visit or be

visited by their father for now. Resultantly, the children must be allowed to recover from the social, emotional and psychological impact of their parents' differences and that the father be considered for access to his children under the supervision from the nearest Department of Social Development.

In matters of access, where the child is mature enough, the court may consider the child's views. While these views are not decisive on their own, they form part of the broader factors that collectively guide the court in determining what serves the child's best interests in the circumstances. Thus, the report shows that the two children gave their opinions on how they felt about their father's request to access them in Harare and Bulawayo. The investigations exposed their wishes as to why they would not want to see their father.

AM who is 11 years old was interviewed through the agency of age-appropriate language or techniques, in which she expressed that she sometimes misses her father, envies other children when they talk about their fathers at school and in the neighborhood, however, she expressed that she dislikes her father visiting them for now. April indicated that she dislikes how her father used to treat their mother, he would yell in her presence and do the same to her, and for this reason she is not ready to be visited or visit him in Bulawayo and needs time before he can come.

AM who is 9 years old, expressed that he does not want to go back to Bulawayo because of his father's conduct during the subsistence of their parent's marriage. He indicated that his father's behaviours such as yelling at the respondent, which makes him scared of his father, his father not attending school consultations, the dislike he has towards his father's cooking and the fact that his father would not allow his mother to eat or use the car and they would resort to using public transport.

**The Law and application of the Law**

The law provides that a non-custodian parent has an inherent right to enjoy reasonable access to his or her child. However, any issue to do with a minor child has to be informed by the best interests of the child. The learned author I.D. Schafer in **The Law of Access to Children** aptly stated as follows:

> "When a court is called upon to resolve a disputed access case, it has to resort to two basic principles. The first and overriding principle which runs like a golden thread through the fabric of

> our whole law relating to children is that the interests of the children are paramount. The second principle is that reasonable access is subject to the custodian parent's right of control."

**The Guardianship of Minors Act [*Chapter 5:08*]** affirms that the best interests of the child are the paramount consideration and reiterated in the **Constitution of Zimbabwe Amendment** (No.20) Act 2013, specifically section 81 (2) which provides:

"*A child's best interests are paramount in every matter concerning the child."*

In *Cunningham* v *Pretorius* [2008] ZAGPH 258 (21 August 2008) the court held as follows:

> "What is required is that the court acquires on an overall impression and brings a fair mind to the facts set out by the parties. The relevant facts, opinions and circumstances must be assessed in a balanced fashion and the court must render a finding of mixed facts and opinion, in the final analysis structured value judgment about what is considers will be in the best interests of the minor child."

Further, the factors which the court considers in order to fulfill the best interests of the child test do not exist in a specified vacuum as each case is different and the court is enjoined to take into account the context and facts to each particular matter in order to determine the best interests of the child. Amongst others, the court will take into account the child's preference, if the court is satisfied that in the particular circumstances the child's preference should be taken into consideration. That being so, any court faced with an issue pertaining to a child, is bound to assess the evidence before it and arrive at a conclusion based on what is in the best interests of the particular child concerned. In matters pertaining to access, where the child concerned is old enough the court is at liberty to also get to know the child's attitude which, though not decisive, it together with other factors cumulatively assist the court in deciding what the best interests of the child are in the circumstances.

This court find the social welfare officer's recommendations as well as the concerns raised by the children are sufficient to justify an order of supervised access. The evidence outlined above shows that the conflict between the applicant and respondent have been so intense that the children have been caught up and affected by them. It would be a dereliction of duty for this court as the upper guardian of the minor children to ignore the children's concerns, access matters are to be decided by considering all the facts to a matter having regard to the best interest of the child. Thus, the court is of the view that it is in the best interest of the children for the

applicant to be awarded supervised access and allow the children to time to recover from the social, emotional and psychological impact of their parents' differences and for the parents to consider taking their children for counselling with the Department of Social Development as recommend by the social welfare report. The court is also of the opinion that when it becomes conducive, the applicant can always approach the court seeking for a variation from the here ordered supervised access.

**Disposition**

1. The Applicant be and is hereby granted supervised access of the minor children, April Chenai Mpozori (born 14 April 2015), Ashely Edison Mpozori (born on 31 August 2016) and Alya Maitaishe Mpozori (born on 14 August 2021) one weekend a month.
2. The Respondent shall select the person to be present during the supervised visit with the said minor children, at the applicant's expense.
3. The Respondent is hereby ordered to give the Applicant access to communicate on a cellular telephone to the said minor children every weekend between the times of 1pm and 6pm.
4. The applicant is to purchase the cellular telephone within two weeks of this court order for the minor children's telephonic access which the respondent will keep safe and in good repair for the minor children's use.
5. There be no order as to costs.

**PHILLIPS J**……